

1.0 PURPOSE AND NEED

1.1 OVERVIEW

The Department of State (DOS) is the federal executive agency responsible for the international relations of the United States. DOS has a number of domestic and international responsibilities associated with the establishment and operation of foreign missions in the United States. In this regard, DOS is responsible for assisting foreign missions with identifying properties on which they may locate and operate chanceries in the United States.

Due to the ever increasing scarcity of suitable properties within the District of Columbia, combined with DOS's need for properties in foreign nations of considerable size, the establishment of a new chancery enclave is central to the achievement of a number of goals:

- **Protecting Americans:** Several thousand U.S. government employees work at facilities that need to be replaced in nations where site acquisitions are complicated by the lack of reciprocal parcels within the District of Columbia. This project would allow DOS to leverage the availability of "chancery ready" parcels to speed and/or finalize the acquisition of safe and secure facilities from which to conduct American diplomatic and consular operations.
- **Growing the American Economy:** Research proves that one U.S. job is created by every 65 tourist visas issued from a U.S. embassy or consular post abroad. The DOS can leverage this project to speed the acquisition of new locations in select countries where visa demand is strong and expected to grow, yet current building constraints inhibit DOS's ability to address this demand efficiently.
- **Location of Foreign Chanceries in New Areas of the District of Columbia:** The majority of the foreign missions in the District of Columbia are heavily concentrated along Massachusetts Avenue, and the Sheridan-Kalorama neighborhood. This project would expand desirable chancery locations further into the District to generate economic benefits for the city and enhance both existing and proposed developments.

The availability of adequate space for the construction and operation of chanceries by foreign missions has been a long-standing challenge in the District of Columbia. An initial response to this issue came with the passage of the International Chancery Act of 1968, which authorized DOS to undertake the redevelopment of the former campus of the National Bureau of Standards, located near the intersection of Connecticut Avenue and Van Ness Street, as the International Chancery Center (ICC); the ICC started construction in 1968. All parcels within the ICC are fully assigned. In anticipation of needing another site similar to the ICC, DOS undertook a multiyear evaluation of available land parcels within the District of Columbia and

Chapter 1 details the underlying purpose and needs to which the projects sponsors are responding with alternatives in Chapter 2. Chapter 1 provides an overview of the decision makers and decision-making process and provides a foundation for the remainder of the document.

A "chancery" is the principal offices of a foreign mission used for diplomatic or related purposes, and annexes to such offices (including ancillary offices and support facilities), and includes the site and any buildings on the site which are used for such purposes.

A "foreign mission" is any mission to or agency or entity in the United States which is involved in diplomatic, consular or other activities of, or which is substantially owned or effectively controlled by, a foreign government; or an organization representing a territory or political entity which has been granted diplomatic or other official privileges and immunities under the laws of the United States or which engages in some aspect of the conduct of international affairs of such territory or political entity, including any real property of such a mission and the personnel of such a mission.

concluded that the former Walter Reed Army Medical Center (WRAMC) site was best suited to support a chancery center concept.

1.2 DESCRIPTION OF THE PROPOSED ACTION

The proposed action is to prepare a Master Plan for the long-term development of a Foreign Missions Center (FMC) on approximately 31.7 acres of the former WRAMC site at 16th Street, between Aspen Street and Alaska Avenue in the District of Columbia (exhibit 1.1). The proposed action consists of assignment of federal land to foreign missions for the purpose of constructing and operating new chancery facilities (exhibit 1.2). DOS would manage the FMC, including maintaining common areas. In support of the Master Plan, design guidelines are being developed to assist foreign missions with the development of their lot. Each foreign mission design would be subject to the local jurisdictional approval process for the design and construction of mission facilities.

Insert Exhibit 1.1

Insert Exhibit 1.2

The proposed FMC was conceptually planned to complement the campus character and be consistent with current and future adjacent land uses by:

- Designing each lot access point to be placed on internal roadways of the campus;
- Allowing public access (pedestrian, bicycle, motorized vehicle) to the proposed streets and 14th Street linear park within the site;
- Developing a re-use program for one historic building and maximizing the potential for re-use of other historic buildings;
- Maintaining a greater than 30-foot setback between the Southern boundary of the site and historic Main Drive (including a 15-foot transportation easement, 15-foot DOS easement, and additional setback from these two easements as described in lot development guidelines);
- Emphasizing vehicular and pedestrian connections between the DOS portion and the adjacent land uses; and
- Maintaining a 50-foot vegetated buffer on the west boundary of the site, and preserving the tree canopy to the maximum extent possible.

DOS anticipates a maximum of 9 chanceries to be established at the FMC. Countries would have the option to combine lots if desired. The lots would range in size. The lots south of Dahlia Street are envisioned to be larger with the expectation that foreign missions may construct several buildings, creating a compound (exhibit 1.3). The lots north of Dahlia Street are envisioned to be closer together, creating a more urban density. Each foreign mission would be responsible for meeting parking needs

Foreign Missions Act of 1982

The Foreign Missions Act of 1982, 22 U.S.C. 4301-4316, reaffirms the federal government's jurisdiction over the operation of foreign missions and international organizations in the United States. The Act resulted in the establishment of the Office of Foreign Missions (OFM) within DOS to review and control the operations of foreign missions in the United States and the benefits that are made available to them. It empowers OFM to set the terms and conditions whereby benefits may be provided to foreign missions. It establishes procedures and criteria governing the location, replacement, or expansion of chanceries in Washington, DC. The Act authorizes DOS to acquire property in the United States for the establishment of property exchange agreements with foreign governments, whereby the U.S. government would reciprocally obtain a site abroad that is of equal benefit.

(employee and visitor) on its individual lot. The design guidelines will promote a majority of parking to be below grade. On-street parking on internal FMC roadways would not be permitted. Specific lot development restrictions (such as minimal building setbacks, building lot coverage, maximum building height, and floor to area ratio) would be dependent upon the lot's location (exhibits 1.4 and 1.5).

Insert Exhibit 1.3

Insert Exhibit 1.4

Insert Exhibit 1.5

The primary vehicle entrance would be at the intersection of Main Drive and 14th Street. Other vehicle entrances would be at Alaska Avenue and 14th Street, Alaska Avenue and Dahlia Street, and Dahlia Street. Streets internal to the FMC would be private, and owned and maintained by the federal government. Primary streets (14th Street and Dahlia Street) would consist of one travel lane and one bike lane in each direction. Wider sidewalks would be located on both sides of primary streets. Intersections would be controlled with stop signs. The FMC would be open to public transit.

The existing historic perimeter fence along the 16th Street, Alaska Avenue, and Fern Street frontages would be retained. Each foreign mission would be responsible for the perimeter security of its individual lot. Fencing standards for individual lots would be developed as part of the design guidelines.

Utilities at the FMC would include domestic water, stormwater drainage and treatment, sanitary sewerage, data and telecommunications, electrical power, natural gas, and street lighting. Stormwater would be managed at the FMC as a whole and on-site at each lot, including opportunities for grey water re-use and bio-retention gardens. The stormwater system for roads would connect to the District of Columbia system. Utilities would be underground within the street/sidewalk right-of-way (ROW). Utility service would be provided to each lot.

Foreign missions would fully fund DOS's upfront infrastructure development costs through the revenue generated from the assignment of lots. Cost effectiveness measures for the FMC include maximizing the number of lots available for assignment, re-using existing roadway locations, and minimizing maintenance-intensive public features. To allow for cost-neutral funding, the proposed action envisions implementation in phases; funds from the assignment of land during one phase would finance the development costs for it and the next phase. The phased approach would optimize lot size and site design.

The proposed action would be built over approximately 20 years (exhibit 1.6).

Insert Exhibit 1.6

1.3 PURPOSE AND NEED

The purpose of the proposed action is to prepare a master plan for the long-term development of a Foreign Missions Center, under authorities of the Foreign Missions Act of 1982, on the site of the former WRAMC in the District of Columbia. The master plan is intended to guide the development of a cohesive campus by establishing design and land-use planning principles for the construction of new buildings, roadways, open green space, and utilities, while minimizing environmental impacts.

The need for the proposed action is based on increased and high demand for foreign mission facilities in the District of Columbia, a lack of large sites for foreign mission development or redevelopment in the District, and the need for land to use in property exchanges with other countries. The proposed action is needed primarily to address the increasing scarcity of suitable properties within the District to locate the operations of foreign missions. This scarcity has impacted DOS's ability to acquire properties in foreign nations.

Increased and High Demand for Foreign Mission Facilities in the District of Columbia

DOS has an urgent need to meet the demand from foreign missions for modern and secure facilities within the nation's capital. The District of Columbia is one of the smallest national capitals, but is home to more foreign missions than any other city in the world. There are approximately 186 foreign missions and 31 headquarters or offices of international organizations in the northwest quadrant of the city, heavily concentrated along Massachusetts Avenue, the Sheridan-Kalorama neighborhood, and at the full ICC.

The collapse in the 1990s of both the Soviet Union and Yugoslavia resulted in the creation of 21 new countries, all of which quickly moved to establish diplomatic missions in the District of Columbia. Many are located in small, historic townhouses in the Sheridan-Kalorama and Massachusetts Avenue areas. Two decades later, many of these countries have outgrown the small facilities acquired in the very early days of their histories. Further, the rapid growth and prominence in the past decade of countries such as Brazil, China, India, and Vietnam has had a significant impact on the diplomatic presence of such governments, as well as on DOS's reciprocal presence and operations in those countries.

Lack of Property for Development or Redevelopment of Foreign Mission Facilities in the District of Columbia

There is a lack of property within the District of Columbia for the development or redevelopment of foreign missions facilities. The Foreign Missions Act states that chanceries shall be able to locate, as a matter of right, in an area which is zoned commercial, industrial, waterfront or mixed-use. Properties that fail to meet these criteria require the consent of the District of Columbia's Board of Zoning Adjustment (BZA). The BZA is required by Congress to make its decision based upon several factors, including: 1) historic preservation, 2) adequacy of off-street or other parking and the extent to which the area would be served by public transportation, and 3) the extent to which the area is capable of being adequately protected, as determined by DOS. Due to these zoning requirements and the limited supply of undeveloped or re-developable parcels within the District of Columbia, the ability of foreign missions to identify appropriate sites is becoming incrementally more challenging each year.

The ICC successfully allowed foreign missions to locate their chanceries in a purpose-built community, which was designed to both address the modern needs of such operations and to mitigate possible negative impacts such facilities may have, or be perceived to have, to neighboring properties and citizens. The ICC has proven to be a highly successful model for balancing the federal government's need to accommodate foreign mission facilities with the concerns of citizens about the location and operation of foreign missions in the District of Columbia. With the ICC fully assigned, DOS has a need to create a second ICC-type location.

Reciprocity Difficulties

In accordance with the Foreign Missions Act, DOS enters into property exchange agreements with other countries, whereby property is provided to foreign governments for the establishment of missions in exchange for DOS receiving similar property within their countries. The lack of suitable land for development or redevelopment and a full ICC have inhibited DOS's ability to reciprocally acquire property abroad to house its diplomatic and consular facilities.

The construction of the new U.S. chancery in Beijing and the Chinese chancery in the District of Columbia provides an example of how reciprocity functions. During the 1990s, U.S. chancery facilities in Beijing were identified as not meeting functional, safety, or security standards. With buildings on three distinct compounds and embassy offices located at 20 sites around Beijing, there was a need to co-locate personnel onto a single compound. In addition, the demand for consular services in Beijing was increasing. After initiating planning with the Chinese government, the new U.S. chancery in Beijing was constructed, and opened in August 2008 on a 10-acre site in China's Third Diplomatic Enclave. Simultaneously, DOS was able to provide China with land in the ICC for their new chancery, which also opened in 2008. Planning and construction of the U.S. and Chinese chanceries was governed by a series of reciprocal agreements and memoranda between the two countries. Without the ability to accommodate China's construction needs at the ICC, DOS's efforts to construct a new U.S. chancery in Beijing would most likely not have been successful.

As foreign governments continue to face greater difficulty identifying properties within the District of Columbia that are either available for chancery use or are viewed by foreign governments as being suitable for modern embassy operations, DOS faces a number of new challenges in its attempts to reciprocally acquire properties in other countries. DOS has a need to resolve stalled attempts to acquire property in certain countries to construct adequate and secure facilities for the conduct of American diplomacy and consular operations.

1.4 OTHER ACTIONS

The Department of the Army is dividing the former WRAMC into three proposed developments. About 31.7 acres of the westerly portion of the campus would be developed by DOS for the FMC. In the central portion of the campus, 11.9 acres would be dedicated to a Public Health facility. While a specific user has not been identified, the redevelopment goal is a medical research facility. To the east, 66.5 acres would be developed by the District of Columbia's WRAMC Local Redevelopment Authority (DC-LRA) as a mixed-use development (exhibit 1.7). The proposed DC-LRA plan has been created to respond to the physical and market conditions of potential new uses of the property.

Insert Exhibit 1.7

The proposed DC-LRA reuse plan creates a site that is re-connected with the neighborhood community and includes uses that are compatible with existing and proposed functions in the area. The DC-LRA envisions the site as a mix of open spaces and retail, residential uses with diverse housing options, commercial offices, institutional spaces, medical care facilities and cultural and community uses.

1.5 FEDERAL DECISIONS AND ACTIONS

DOS is the lead federal agency for the proposed action. DOS, with input from the public and other federal and district agencies, would decide future actions in accordance with the National Environmental Policy Act (NEPA) and related legislation and Presidential Executive Orders (EOs). The NEPA requires federal agencies to consider the potential impacts to the natural and human environment from their actions as part of their decision-making process, and to disclose the potential impacts in a document that is circulated for public review. The NEPA process is intended to help public officials make decisions based on an understanding of the environmental consequences and to take actions that protect, restore, and enhance the environment (40 Code of Federal Regulations (CFR) Part 1500.1).

Several federal agencies participated in the alternatives development process by providing informal recommendations to DOS. These agencies were the CFA, the NCPC, and the Advisory Council on Historic Preservation (ACHP). The CFA is an independent agency established in 1910 by Act of Congress charged with giving expert advice to the President, Congress and the heads of departments and agencies of the Federal and District of Columbia governments on matters of design and aesthetics as they affect the Federal interest and preserve the dignity of the Nation's capital. Within the District of Columbia community, the Commission advises on design matters affecting the WRAMC and Rock Creek Park, as well as other private sector areas adjacent to federal interests. Under 45 CFR § 2101.1(a), CFA comments and advises on the plans and the merits of the designs before final approval or action for public buildings to be erected in the city by the Federal government.

Under 40 U.S.C. § 8722, NCPC has approval authority over site and building designs for federal public buildings in the District of Columbia and its metropolitan area, and uses NCPC-approved master plans and policies found in the Comprehensive Plan for the National Capital as the basis for subsequent reviews and approvals.

For the proposed action, the role of CFA and NCPC is advisory, not regulatory, as summarized in a July 2015 Public Notice issued by DOS in the Federal Register. The Public Notice designates the acquisition and use of property (including construction or renovation of facilities on the property) by foreign missions at the FMC, as well as access to and use of roads, sidewalks and other common areas, and other public services at the FMC, to be a benefit as defined in the Foreign Missions Act (22 U.S.C. 4302(a)(1)). DOS further determined, under 22 U.S.C. 4304, that their regulation of the acquisition and use of property in the FMC, as well as access to and use of roads, sidewalks and other common areas, and other public services at the FMC is reasonably necessary in order to: (1) Facilitate relations between the United States and a sending State; (2) protect the interests of the United States; and (3) adjust for costs and procedures of obtaining benefits for missions of the United States abroad. Therefore, the process through which foreign missions would be authorized to acquire, use, and dispose of property and to construct or renovate facilities would be subject to terms and conditions established by DOS, subject only to disapproval by the District of Columbia Board of Zoning Adjustment in accordance with the procedures and criteria set forth in 22 U.S.C. 4306. The ACHP is an independent federal agency that administers historic preservation matters and oversees the National Historic Preservation Act (NHPA) Section 106 review process (review of impacts on historic properties).

District agencies that participated in the alternatives development process by providing informal recommendations to DOS were the DC Historic Preservation Office (DC-HPO) and the DC-LRA. The DC-HPO promotes stewardship of the District of Columbia's historic and cultural resources through planning, protection, and public education. DC-HPO is part of the DC Office of Planning and serves as the staff for the Historic Preservation Review Board and the Mayor's Agent for historic preservation. DC-HPO implements federal historic preservation programs as the State Historic Preservation Office for the District of Columbia, responsible for protecting the city's unique historical, archaeological, architectural, and cultural resources. This responsibility is shared with each federal agency that administers properties or undertakes construction activities within the city. In accordance with the Base Realignment and Closure Act (BRAC) law, the District of Columbia established the DC-LRA by Mayoral Order 2006-21. The District of Columbia is the only jurisdiction comprising the LRA and is recognized by the Department of Defense, Office of Economic Adjustment. The Mayor of the District of Columbia established the Walter Reed LRA Committee to oversee the preparation of its Reuse Plan which was created by the District government and is administered by the Office of the Deputy Mayor for Planning and Economic Development (DMPED). The DC-LRA is overseeing the redevelopment of the other portion of the WRAMC site.

1.6 PURPOSE OF ENVIRONMENTAL IMPACT STATEMENT (EIS)

The purpose of this EIS is to provide DOS and the public with a full accounting of the potential environmental impacts of the alternatives developed for meeting the proposed action's purpose and needs. The EIS serves as the primary document to facilitate review of the proposed action by federal, state and local agencies and the public. It is intended to provide a full and fair discussion of the potential significant environmental impacts from the proposed action and inform decision makers and the public of reasonable alternatives that would avoid or minimize adverse impacts or enhance the quality of the human environment (40 CFR Part 1502.1). An EIS must briefly discuss the purpose and needs for the proposed action, the range of alternatives considered, the resultant environmental impacts from the proposed action, and the agencies and people consulted during the planning of the proposed action. The ultimate objective of this EIS is to identify a solution that furthers the proposed action's purpose, satisfies the needs of the proposed action, and minimizes adverse environmental and social impacts at an affordable cost.

The EIS was first circulated publicly as a Draft Environmental Impact Statement (DEIS) in February 2014. Following publication of the DEIS, a public hearing was held on March 6, 2014 to solicit additional public input into the planning and decision-making process (exhibit 1.8). Additionally, public input was accepted during the 45-day comment period following publication of the DEIS. Subsequent to the publication of the DEIS, the total acreage of the land available for transfer from the Army to DOS was reduced from 43.5 to 31.7 acres. Because of the change in the proposed action, DOS is preparing a Supplemental DEIS to describe the new preferred alternative, and evaluate any change in potential impacts from the reduction in size of the proposed action. Comments from other federal agencies, district agencies, and the public on the DEIS have been used to assist DOS in identifying the preferred alternative and refining the analysis of impacts. Following publication of the SDEIS, a public hearing will be held

and a 45-day public comment period will occur to solicit additional public input. A Final EIS (FEIS) will be publicly circulated after comments are received on the SDEIS.

Insert Exhibit 1.8

Publication of the FEIS is followed by DOS issuing a Record of Decision (ROD) explaining the rationale for choosing the preferred alternative and describing the implementation of the preferred alternative. The ROD:

- States the DOS decision.
- Identifies all alternatives considered by the agency in reaching its decision, specifies the alternative or alternatives which were considered to be environmentally preferable. An agency may discuss preferences among alternatives based on relevant factors including economic and technical considerations and agency statutory missions. An agency shall identify and discuss all such factors including any essential considerations of national policy that were balanced by the agency in making its decision and state how those considerations entered into its decision.
- States whether all practicable means to avoid or minimize environmental harm from the alternative selected have been adopted, and, if not, why they were not. A monitoring and enforcement program shall be adopted and summarized where applicable for any mitigation (40 CFR Part 1505.2).

1.7 SCOPE OF ENVIRONMENTAL ANALYSIS

Public participation is integral to the preparation of an EIS. This section summarizes the issues and concerns that were identified during the public scoping process held from June 18 through August 10, 2012 and where those issues are addressed in this EIS (exhibit 1.9). Scoping is a process for determining the range of issues to be addressed in an EIS and for identifying significant issues associated with the alternatives (40 CFR Part 1501.7). The objectives of the scoping process are to notify those interested—other federal, district, and local agencies, tribes, and other groups—about the alternatives being considered; solicit comments about environmental issues, alternatives, and other items of interest; and consider those comments in the preparation of the EIS.

Insert Exhibit 1.9

Scoping for the EIS began with DOS issuing its notice of intent to prepare an EIS, which was published in the Federal Register June 18, 2012. The notice of intent invited individuals, organizations, and agencies to submit comments concerning the scope of the EIS. The comment period ended on August 10, 2012, and DOS considered the comments received in defining the scope of the analysis performed and documented in the EIS.

A public scoping meeting was held July 19, 2012, in the District of Columbia. This meeting consisted of an open house with displays, a presentation, and time for public comments and questions to be considered in the planning of the proposed action and preparation of the EIS. Approximately 55 people attended the scoping meeting including residents, community leaders, members of the press, elected officials, and District of Columbia government agency representatives.

**1.8 APPLICABLE REGULATIONS, EXECUTIVE ORDERS, AND
REQUIRED PERMITS AND APPROVALS**

Many statutes and EOs apply to the proposed action and were considered during the planning and conceptual design of the proposed action and preparation of this EIS (exhibit 1.10).

DOS would not require permits to implement the proposed action.

Insert Exhibit 1.10

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